

NOTICE OF
DEFAULT AND
FORECLOSURE SALE

612 W AUGUSTA AVE, PHOENIX AZ, 85021

Prepared by/Mail to:
The Law Offices of Ira T. Nevel, LLC
175 N. Franklin St. Suite 201 Chicago, IL 60606
(312) 357-1125

NOTICE OF DEFAULT AND
FORECLOSURE SALE

WHEREAS, on 03/30/2016, a certain Mortgage was executed by MARGARITA WARRINGTON by Robert Warrington as attorney in fact, as Mortgagor, in favor of MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., (MERS) (SOLELY AS NOMINEE FOR LENDER, AS HEREINAFTER DEFINED, AND LENDER'S SUCCESSORS AND ASSIGNS), LENDER: NOVA FINANCIAL AND INVESTMENT CORPORATION DBA NOVA HOME LOANS as Mortgagee, and was recorded on 04/04/2016, as Document Number 20160219648, in the Office the Recorder of Deeds, Maricopa County, Arizona and

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WHEREAS, the Mortgage was insured by the UNITED STATES SECRETARY OF HOUSING AND URBAN DEVELOPMENT (the SECRETARY) pursuant to the National Housing Act for the purpose of providing single family housing; and

WHEREAS, the Mortgage is now owned by the SECRETARY, pursuant to an Assignment of Mortgage dated 08/17/2022, and recorded on 08/23/2022, as Document Number 20220661226, in the Office of the Maricopa County Recorder of Deeds, Arizona; and

WHEREAS, a default has been made in the covenants and conditions of the Mortgage in that the payment due on 07/24/2026 was not made and remains wholly unpaid as of the date of this notice, and no payment has been made sufficient to restore the loan to currency; and

WHEREAS, by virtue of this default, the SECRETARY has declared the entire amount of this indebtedness secured by the Mortgage to be immediately due and payable;

NOW THEREFORE, pursuant to the power ^{Unofficial Document} vested in me by the Single Family Mortgage Foreclosure Act of 1994, 12 U.S.C. 3751 et seq., by 24 CFR Part 27, subpart B, and by the SECRETARY'S designation of me as Foreclosure Commissioner, dated September 15, 2016, notice is hereby given that on **11/10/2026 at 8:30 AM local time**, all real and personal property at or used in connection with the following described premises located at ("Property"), will be sold at public auction to the highest bidder.

P.I.N.: 160-42-072

PROPERTY ADDRESS: 612 W AUGUSTA AVE., PHOENIX, AZ 85021

LEGAL DESCRIPTION: LOT 13 OF MODERN GROVES, A SUBDIVISION OF MARICOPA COUNTY, ARIZONA, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE MARICOPA COUNTY RECORDER IN BOOK 125 OF MAPS AND PLAVEST T S AT PAGE 32 THEREOF.

The sale will be conducted online on Zoom at: Meeting ID: 648 483 3997; Password: 743891. There is a Zoom call-in option at 312-626-6799. THE SECRETARY OF HOUSING AND URBAN DEVELOPMENT will bid \$883,470.04 plus per diem interest, advances, fees and costs. There will be no proration of taxes, rents or other income or liabilities, except that the purchaser will pay, at or before sale, his prorata share of any real estate taxes that have been paid by the Secretary to the date of the foreclosure sale. The Special Commissioner shall accept advance, sealed written bids at Pleadings@Nevellaw.com.

The successful bidder, except the SECRETARY, must submit a deposit totaling at least 10% of the bid in the form of a certified check or cashier's check made out to the SECRETARY OF HUD at the close of bidding sent to the Special Commissioner at the address below by express mail next-day delivery. The deposit is non-refundable. The remainder of the purchase price must be delivered within thirty (30) days of the ~~Unofficial Document~~ such other time as the SECRETARY may determine for good cause shown, time being of the essence. This amount, like the bid deposits, must be delivered in the form of a certified check or cashier's check made payable to the SECRETARY OF HUD. If the SECRETARY is the high bidder, he need not pay the bid amount in cash. The successful bidder will pay all conveyancing fees, all real estate taxes and other taxes that are due on or after the date of sale and all other transfer taxes and State, County and Municipal costs associated with the transfer of title.

The SECRETARY may grant an extension of time within which to submit the balance of the bid. All extensions will be for fifteen (15) days, and a fee will be charged in the amount of \$500.00. The extension fee shall be paid in advance and in the form of a certified check or cashier's check made payable to the SECRETARY OF HUD.

If the high bidder is unable to complete the sale within the required period, or within any extension of time granted by the SECRETARY, the high bidder's deposit will be forfeited as liquidated damages, and the Commissioner may, at the direction of the HUD Field Office Representative, offer the Property to the second highest bidder for an amount equal to the highest price offered by that bidder. All other terms of the Sale would remain the same. If the second highest bidder rejects the Commissioner's offer, the Field Office Representative will provide instructions to the Commissioner about cancellation of the Sale or other action to be taken.

There is no right of redemption, or right of possession based upon a right of redemption, in the mortgagor or others subsequent to a foreclosure completed pursuant to the Act. Therefore, the Foreclosure Commissioner will issue a Deed to the purchaser(s) upon receipt of the entire purchase price in accordance with the terms of the sale as provided herein. HUD does not guarantee that the property will be vacant. Unofficial Document

The scheduled foreclosure sale shall be cancelled or adjourned if it is established, by documented written application of the mortgagor to the Foreclosure Commissioner not less than 3 days before the date of sale, or otherwise, that the default or defaults upon which the foreclosure is based did not exist at the time of service of this notice of default and foreclosure sale, or all amounts due under the mortgage agreement are tendered to the Foreclosure Commissioner, in the form of a certified or cashier's check payable to the Secretary of HUD, before public auction of the property is completed.

The amount that must be paid if the mortgage is to be reinstated prior to the scheduled sale is \$NA (as this maybe a Reverse Mortgage) as of NA, plus all other amounts that would be due under the mortgage agreement if payments under the mortgage had not been accelerated,

advertising costs and postage expenses incurred in giving notice, mileage by the most reasonable road distance for posting notices and for the Foreclosure Commissioner's attendance at the sale, reasonable and customary costs incurred for title and lien record searches, the necessary out-of-pocket costs incurred by the Foreclosure Commissioner for recording documents, a commission for the Foreclosure Commissioner, and all other costs incurred in connection with the foreclosure prior to reinstatement.

Tender of payment by certified or cashier's check or application for cancellation of the foreclosure sale shall be submitted to the address of the Foreclosure Commissioner provided below.

BE ADVISED THAT THIS NOTICE CONSTITUTES AN ATTEMPT TO COLLECT A DEBT AND ANY INFORMATION RECEIVED HEREUNDER WILL BE USED FOR THAT PURPOSE.

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In accordance with the Fair Debt Collection Practices Act, you are hereby advised that this is an attempt to collect a debt and any information received will be used for that purpose, and:

- 1. Unless you dispute the validity of the balance within thirty (30) days of your receipt of this Notice, we will assume that the amount is correct;**
- 2. If you dispute the accuracy of the arrearage, and so notify us in writing within said thirty (30) day period, we will send you a verification of the arrearage amount; and**
- 3. If the above Mortgage lender is not the original lender on your Note and Mortgage, we will provide you with the name and address of the original lender, should you request such information in writing within the foregoing thirty (30) day period.**

IF YOU ARE CURRENTLY IN A BANKRUPTCY PROCEEDING OR HAVE PREVIOUSLY OBTAINED A DISCHARGE OF THE DEBT UNDER APPLICABLE BANKRUPTCY LAW, THIS NOTICE IS FOR THE PURPOSE OF INFORMATION ONLY AND IS NOT AN ATTEMPT TO COLLECT A DEBT, A DEMAND FOR PAYMENT, OR AN ATTEMPT TO IMPOSE PERSONAL LIABILITY FOR A DEBT. IT IS A STATUS OF THE LOAN ONLY. YOU ARE NOT OBLIGATED TO DISCUSS YOUR HOME LOAN WITH THIS OFFICE OR YOUR MORTGAGE LENDER. YOU SHOULD CONSULT WITH YOUR BANKRUPTCY ATTORNEY OR OTHER ADVISOR ABOUT YOUR LEGAL RIGHTS AND OPTIONS.

Dated: 10/1/26



IRA T. NEVEL
 Foreclosure Commissioner for the United States
 Department of Housing and Urban Development
 175 North Franklin, Suite 201
 Chicago, Illinois 60606
 (312) 357-1125

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STATE OF ILLINOIS)
) SS
 COUNTY OF COOK)

AFFIDAVIT OF MAILING

I, IRA T. NEVEL, being first duly sworn on oath, depose and state that I served a copy of the Notice of Default and Foreclosure Sale to all parties of record by placing a true and correct copy thereof in a sealed envelope plainly addressed, certified mail, return receipt requested, and deposited same in the United States mail chute at 175 North Franklin, Chicago, Illinois, with postage fully prepaid on 10/1, 2026.



IRA T. NEVEL

SERVICE LIST

SECRETARY HOUSING AND URBAN DEVELOPMENT

CERTIFIED MAIL: 9589 0710 5270 4696 4376 59

C/O The Associate General Counsel for Litigation

Office of Litigation

U.S. Department of Housing and Urban Development

451 Seventh Street, S.W.

Washington, D.C. 20410

UNKNOWN OCCUPANTS, UNKNOWN OWNERS, UNKNOWN HEIRS, ROBERT JAMES
WARRINGTON, ESTATE OF MARGARITA WARRINGTON

CERTIFIED MAIL: 9589 0710 5270 4696 4376 66 AND BY POSTING

612 W AUGUSTA AVE.,

PHOENIX, AZ 85021

BARBARA MARIE STEWART

CERTIFIED MAIL: 9589 0710 5270 4696 4376 73

21183 HIGHWAY 5,

LONSDALE, AR, 72087

JEFFREY CHARLES WARRINGTON

CERTIFIED MAIL: 9589 0710 5270 4696 (Unofficial Document)

5265 TAFT CT,

ARVADA, CO, 80002

PREPARED BY/RETURN TO:

LAW OFFICES OF IRA T. NEVEL, LLC

175 N. FRANKLIN ST., SUITE 201

CHICAGO, IL 60606